

As to RJN Exhibits 50-61 and 87-89, the Court **sustains** defendants' Objection Nos. 65-76 and 102-104 to those documents on the ground of lack of authentication. (Evid. Code §§ 453(b), 1400, 1401(a).) "Points and authorities are not presented under penalty of perjury. Matters set forth in points and authorities are not evidence. [Citation omitted.]" (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal. App. 5th 574, 590.) (*See also In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515 ["The allegations of a brief are not evidence, and a brief is not a sworn document."].) The request for judicial notice is argument, not evidence by a declarant with personal knowledge attesting to the facts necessary to authenticate the documents. (*See, e.g., Wassmann v. South Orange County Community College Dist.* (2018) 24 Cal. App. 5th 825, 842 [declining to take judicial notice of records in part based on lack of authentication].)

6. 9:00 AM CASE NUMBER: C23-01274
CASE NAME: NATASHA WINDOM VS. SKSS ENTERPRISES INC.

***HEARING ON MOTION IN RE: COMPLIANCE HEARING**
(MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT GRANTED ON 3/4/26)
FILED BY:

TENTATIVE RULING:

Summary

This compliance hearing was scheduled pursuant to the Court's order for final approval and judgment of the class action settlement filed on March 18, 2026.

On March 4, 2026, the Court ordered Plaintiff's counsel to submit a compliance statement one week before this compliance hearing date. No compliance statement was filed by the Parties. Five percent (5%) of the attorney's fees were withheld by the claims administrator. Those fees will continue to be held until Counsel files a compliance statement. Plaintiff's Counsel is ordered to appear on June 3, 2026 to show cause as to why they should not be held in contempt for failing to file a compliance statement.

7. 9:00 AM CASE NUMBER: C24-00719
CASE NAME: EMILY CROSS VS. TARIM HOLDINGS, LLC

***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT**
FILED BY:

***TENTATIVE RULING**

The Parties are ordered to appear either in person or remotely. This motion was heard on April 29, 2026 and continued to allow the parties to meet and confer regarding whether defense counsel would accept service of Plaintiff's Second Amended Complaint.

8. 9:00 AM CASE NUMBER: C24-01054

CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP

**HEARING ON SUMMARY MOTION DEPT 16 NOTE: MSJ PAPERWORK TO BE FILED ON 12/1
FILED BY:**

TENTATIVE RULING:

This Tentative Ruling applies to Lines 8, 9, and 10. On May 26, 2026, the Parties represented to the Court that they have reached a settlement in principle and have requested to take this hearing off calendar. No appearance is required on June 3, 2026.

The Court sets an Order to Show Cause re Dismissal for September 28, 2026 at 8:30 a.m. to follow-up on the settlement. That date may be vacated by stipulation, or the by the filing of a request for dismissal.

9. 9:00 AM CASE NUMBER: C24-01054

CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP

***HEARING ON MOTION IN RE: SEAL UNREDACTED MOTION FOR SUMMARY ADJUDICATION**

FILED BY: SLIVER'S, LLC

TENTATIVE RULING:

See Line 8

10. 9:00 AM CASE NUMBER: C24-01054

CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP

***HEARING ON MOTION IN RE: SEAL DEFENDANTS' UN-REDACTED MOTION FOR SUMMARY
JUDGMENT (ADVANCED FROM 8/19/26)**

FILED BY: SLIVER'S, LLC

TENTATIVE RULING:

See Line 8.

11. 9:00 AM CASE NUMBER: C24-01877

CASE NAME: ZACHARY MINOR VS. CRAIG HOWARD

***HEARING ON MOTION IN RE: FOR EVIDENTIARY SANCTIONS AND TO EXCLUDE IMPROPERLY
WITHHELD "SETTLEMOIR FINANCIALS"**

FILED BY: MINOR, ZACHARY

TENTATIVE RULING:

Summary

Plaintiffs Zachary and Angela Minor ("Plaintiff") filed a Motion in Limine for Evidentiary Sanctions and to Exclude Improperly Withheld "Settlemoirs Financials" against Defendant Craig Howard. This motion is **dismissed** without prejudice as premature and this hearing is **vacated**.. The Court has not set a trial date in this case and it is improper to hear a motion in limine at this stage of the proceedings. Moreover, there is no proof of service form evidencing that Defendant was served with this Motion.

Plaintiff's "reply brief" mentioned that plaintiffs relied on legal interpretation from court staff pertaining to the filing of this motion. Plaintiffs are admonished that they should seek legal advice